

Data to be taken as training knowledge, derived from the personal experience of the user, for the object of the CPC Presentation.

To note: Nothing here is exhaustive, and nothing is contradictory to the architecture. If it is, then architecture overrides this. This is only to be taken as supplementary data, a guidance so to speak, for this particular project. Nothing here is to be taken as absolute truth or as complete information. If you have information that contradicts these, only after adequate weightage will you decide which to implement. The strategy still governs. This following data, again, is simply direction and to be considered, in addition to the strategy. Again, nothing is exhaustive, you will probabilistically know more than here, if so, do implement such as required. Nothing here is binding upon you, except for those which I will explicitly state here.

How to interpret:

A) Vis data — (This is very contextual, therefore reject any and all that is not applicable to the subject chat, and implement anything that would not contradict the subject chat. If everything is contradictory or irrelevant or not needed or vague, reject everything.)

- i) STRUCTURAL DATA: HOW TO INTERPRET (Foundational methodology — no factual context — transferable across disputes) I. THE PRELIMINARY DISCIPLINE — BEFORE YOU INTERPRET ANYTHING Before touching the text of any clause, rule, or document, resolve two threshold questions: 1. Is the provision permissive, mandatory, or prohibitive? The entire argumentative framework that follows depends on this. A permissive provision ("may," "as it sees fit") is never "violated" — you argue whether its conditions were or were not satisfied. A mandatory provision ("shall") creates an obligation. A prohibitive one creates a ban. Framing a permissive standard as though it were an absolute prohibition is a category error that collapses the argument before it begins. 2. How many analytically distinct questions does this issue actually contain? Issues that appear related are frequently legally separate. Identify each discrete question. Argue each separately. Never conflate them, because conflation allows the opponent to answer one question and pretend they answered both. The discipline: separate the threshold/gateway question (does authority exist?) from the substantive question (how is that authority properly exercised?). Winning on the first does not automatically mean winning on the second. II. THE HIERARCHY OF INTERPRETIVE SOURCES Apply these in order. Start with the text. Move down only when the text does not resolve the question. If the text is clear, lower-order sources confirm but do not contradict. 1. Express terms of the agreement — the actual words chosen by the parties. 2. Negotiation history — what was said, proposed, and agreed during negotiations. 3. Conduct during performance — how parties behaved while performing the agreement. 4. Subsequent conduct — how parties acted after formation, which illuminates what they understood themselves to have agreed to. 5. Custom, usage, and trade practice — what these words typically mean in this commercial context. 6. Commercial common sense and underlying purpose — what commercially rational parties in this position would have intended. The critical discipline: identify which source in the hierarchy your argument draws from, and then explain why that source is appropriate for this type of clause and this type of ambiguity. Different clauses attract different sources. A procedural clause attracts trade practice and institutional usage. A commercial price term attracts subsequent conduct and market context. III. THE FOUR CORE INTERPRETIVE TENSIONS — AND HOW TO NAVIGATE EACH A. Literal vs. Contextual Interpretation You do not get to simply choose one. The choice is determined by which method the clause type, the surrounding text, and the purpose of the agreement actually call for. • Invoke literal when the text is unambiguous and the plain meaning supports you. • Invoke contextual when the plain meaning of a word, read in isolation, produces a result inconsistent with the clause's purpose, the parties' evident intent, or commercial common sense. • The discipline: never argue contextual simply because literal hurts you. Identify the genuine reason why this clause requires contextual reading — either because the word is genuinely ambiguous, or because the literal reading produces absurdity, or because the surrounding structure of the document points in a different direction. B. Static vs. Dynamic/Ambulatory Reference A static reference locks the parties into the version that existed at a specific point in time. A dynamic reference automatically updates as the referenced document changes. • The interpretive signal for static: words like "current," "existing," "in force as of," or a specific version number. • The interpretive signal for dynamic: words like "for the time being in force," "as amended from time to time," "the latest version." • The critical insight: the same word can support either reading. The deciding factor is what the surrounding clause, the negotiation history, and the commercial context tell you about which reading the parties intended at the moment of agreement. • The discipline: never argue a word alone. Always locate the word within the clause as a whole, and the clause within the contract as a whole. The word takes its meaning from what surrounds it. C. Subjective Intent vs. Objective Reasonable Person Standard These are two distinct inquiries that must be kept separate. (i) What did Party A actually intend? — subjective intent, proven by their own documents, statements, and conduct. (ii) What did Party B understand from what Party A communicated? — objective standard: what would a reasonable person in Party B's position, with access to the documents Party B actually had, have understood? The critical subtlety: even where Party A had a clear subjective intent, Party B is only bound by what a reasonable person could have derived from the communications available to them. The gap between actual intent and communicable intent is your argumentative terrain. Identify what Party B knew, what was available to them, and what a reasonable person in their position would have understood. This is the legal standard — not what Party A meant in their own mind. D. The Real Intent Behind the Surface Request Parties express their intent in terms of a mechanism or tool, but their real intent is the underlying purpose the mechanism was meant to serve. Over time, circumstances change and the mechanism may diverge from the purpose. • The discipline: always ask "what was this party actually trying to achieve?" and "does the interpretation they now advance serve that purpose, or does it in fact contradict it?" • When you can show that your opponent's interpretation frustrates the very purpose they originally sought, you have undermined their case from within. IV. THE DEVIATION FROM STANDARD CLAUSE — ONE OF THE MOST POWERFUL INTERPRETIVE MOVES Whenever parties depart from a standard template, model clause, or industry-standard formulation, that departure is presumed intentional and must be given legal effect. This works in two directions: • What they added tells you what they deliberately chose to have. • What they removed or replaced tells you what they deliberately chose not to have. The discipline: always locate the standard version of the clause and place it side-by-side with what the parties actually agreed. The delta — what changed — is your primary interpretive material. Parties who remove the standard language signaling dynamic reference and substitute different language have made a deliberate choice. Parties who retain standard language unchanged have acquiesced in its ordinary meaning. V. COMMERCIAL ABSURDITY AS A HARD LIMIT ON INTERPRETATION No matter how textually compelling an interpretation appears, if it leads to a commercially absurd result, it must be rejected. This is not an emotional argument. It is an objective standard. The test: would a commercially rational party, at the time of contracting, have agreed to the result produced by this interpretation? If not, the interpretation is wrong even if it is textually defensible. Commercial absurdity is the ceiling that all interpretation operates beneath. Apply this discipline to your opponent's position: if their reading of a provision locks parties into outdated procedures, removes protections that would obviously serve both parties, or produces consequences no rational actor would have accepted, the absurdity of that result is itself evidence that the interpretation is wrong. VI. THE THREE-LAYER ARGUMENT ARCHITECTURE Never make a single argument. Build three layers: Layer 1 — Primary: Your strongest position, where everything goes your way. Layer 2 — Arguendo (first level): "Even if this Tribunal accepts the opponent's primary premise, we still succeed, because..." — here you genuinely inhabit the opponent's premise and find what within it still favors you. This is not a concession. It is a demonstration that even on their own terms, you win. Layer 3 — Arguendo (second level) / Damage Limitation: "And even if both of the above are resolved against us, the minimum position is..." — here you narrow the damage, limit the scope of any adverse finding, and preserve ground for future proceedings. The discipline for the arguendo layers: you must genuinely inhabit the premise you are temporarily accepting. A weak arguendo argument that only superficially accepts the premise but covertly argues the primary position again is transparent and damaging. Accept the premise fully, then argue from within it. VII. THE TWO-TRACK STRUCTURE FOR OVERLAPPING ISSUES When two issues are related but analytically distinct, argue both tracks in parallel without ever collapsing one into the other. • Track 1: The threshold/gateway question — e.g., does authority exist? which rules apply? is the condition precedent satisfied? • Track 2: The substantive question under whatever is decided on Track 1 — e.g., how should that authority be exercised? what do those rules require? Build independent fallback positions for each track. "If Track 1 goes against us, Track 2 remains independently determinative, because..." This prevents the Tribunal from resolving Track 1 against you and treating the entire issue as disposed of. VIII. THE TEMPORAL DIMENSION OF INTENT Intent is not fixed. It is assessed at a specific point in time, and conduct at different points carries different weight. • Pre-formation intent (what parties discussed and agreed during negotiations): highest weight; this is what they bargained for. • Post-formation conduct (how parties behaved during performance): illuminates what they understood themselves to have agreed to; useful when the text is ambiguous. • Moment of dispute (what parties now claim they intended): lowest weight; parties in litigation reconstruct their intent self-servingly. Treat it as advocacy, not evidence. The discipline: always identify when the intent evidence you are relying on was generated. Evidence generated closest to contract formation, in the ordinary course of dealing, before any dispute arose, is the most probative. Evidence generated in the context of a dispute is the least. IX. THE SCOPE OF DISCRETIONARY POWER When a provision grants discretion, it is neither unlimited nor nonexistent. Its boundaries

are determined by three things: 1. The purpose of the provision — what problem was it designed to solve? 2. The framework within which it sits — what other provisions constrain or qualify it? 3. Mandatory norms that constrain all discretion regardless of what the rules say — due process, equality of arms, privilege, procedural fairness. The discipline: argue the existence of the power and the proper scope of its exercise as separate questions. Winning on existence does not automatically mean winning on scope. Losing on one does not mean losing on the other. X. USING THE OPPONENT'S OWN EVIDENCE Before building any argument from your own evidence, read every piece of the opponent's evidence — every exhibit, witness statement, pleading — and identify what it concedes, not just what it asserts. Three levels of what opponent's evidence may give you: 1. Direct concessions: explicit statements that support your position. 2. Inconsistencies: tensions between what their witness says and what their pleading claims, or between their argument on one issue and their argument on another. 3. Implicit admissions: statements that, read properly in context, establish facts the opponent did not intend to establish. The discipline: the opponent's own witness is a more credible source for a fact that favors you than your own witness is, because the opponent cannot credibly disown what their own evidence says. Learn to read opposing evidence forensically, not just defensively. XI. THE INTERNAL CONTRADICTION MOVE The most structurally devastating argument is not a direct attack on the opponent. It is the demonstration that the opponent's own case is internally inconsistent. This can take three forms: 1. Intent vs. conduct: the opponent claims intent X, but their conduct was Y, which is inconsistent with X. 2. Argument vs. argument: the opponent argues position A on Issue 1, but position B on Issue 2, and A and B cannot both be true. 3. Evidence vs. submission: what the opponent's own evidence establishes contradicts what their submission claims. Identifying the right internal contradiction is the single highest-value analytical task in preparing any argument. XII. MANDATORY NORMS AS INDEPENDENT CONSTRAINTS Certain norms constrain all authority, all rules, and all exercise of discretion regardless of what the parties agreed or what the applicable rules say. These include: • Equality of arms / equal treatment of parties • Due process / natural justice • Legal privilege • Procedural fairness The discipline: these operate independently of whether authority exists. Even where a tribunal has clear power to do something, it may be impermissible to exercise that power in a way that violates these mandatory norms. And where a party argues that an authority does not exist, you can reinforce the argument by showing that even if it did exist, its exercise would be constrained by these mandatory norms on the specific facts. XIII. THE ORAL ARGUMENT OPENING — FRAME BEFORE YOU ARGUE The opening is not a recitation of facts or a summary of submissions. It is the frame through which the Tribunal hears everything that follows. A powerful frame does three things in sequence: 1. States what the case is really about — the underlying issue stripped of procedural complexity. 2. States what the opponent is asking the Tribunal to do — framed in the most accurate but unflattering terms possible. 3. States why that request is problematic — without yet making the legal argument. The discipline: before writing any opening, identify the single sentence that, if the Tribunal understood and accepted it, would dispose of the opponent's case. Write the opening around that sentence. Do not try to win the case in the opening. Establish the frame. The arguments do the winning. XIV. SCOPE OF REFERENCE — READING A CLAUSE AS A WHOLE, NOT WORD BY WORD No word or phrase exists in isolation. Every term takes its meaning from what surrounds it — from the clause it sits in, the contract it forms part of, and the purpose the parties were trying to achieve. The discipline: when interpreting any term, always: (i) Read the word in isolation — what does it plainly mean? (ii) Read it in the context of the clause — does the surrounding language qualify or illuminate the plain meaning? (iii) Read it in the context of the contract as a whole — does the overall structure of the agreement affect its meaning? (iv) Read it in commercial context — does the purpose of the agreement, and the type of parties who concluded it, affect how the word should be understood? If the plain meaning of the word in isolation produces a result inconsistent with the clause's structure, the contract's purpose, or commercial common sense, the plain meaning must yield. The hierarchy of context is: the clause governs the word; the contract governs the clause; the commercial purpose governs the contract.

B) Internship Data —

- i) ****ON INTERPRETATION — GENERAL PRINCIPLES****
 1. ****The label does not determine the nature.**** What a party calls something is irrelevant. What it does is everything. Analyse the operative effect, not the characterisation. A "material particular" that introduces a new factual foundation is a material fact regardless of what it is called.
 2. ****Read the whole instrument at once.**** No clause exists in isolation. Every operative word is anchored to every other. Where a clause appears to grant a right and another clause appears to defeat it, the reading that gives full effect to both must be preferred over the reading that renders either nugatory.
 3. ****The sequence of events is the argument.**** Who did what first, and what did that cause? The chain of cause and consequence is frequently the entire case. Establish the sequence before anything else. The party who broke the chain at its first link is the party in breach.
 4. ****A condition attached to an obligation cannot be invoked by the party who made that condition impossible.**** Where a party relies on non-fulfilment of a condition as justification for its own non-performance, ask first whether that party's own prior act caused or contributed to the non-fulfilment. If yes, the reliance fails.
 5. ****Silence is a representation.**** What was not said, not disclosed, not corrected — when there was a duty to speak — carries the same legal weight as what was said. The omission is the misrepresentation.
 6. ****The purpose of a remedy is to protect, not to profit.**** Any entitlement to retain money, forfeit deposits, or claim damages must be tested against actual loss caused by actual breach. Where no such loss exists, or where the loss was self-caused, the entitlement collapses.
 7. ****New ground introduced at a late stage, founded on facts within the party's own knowledge from the outset, is presumptively tactical.**** The later the introduction, the heavier the burden on that party to explain why it could not have been raised earlier. Absence of explanation is itself evidence of motive.

How to write arguments:

A) Descartes Deductive reasoning example —

- i) I have uploaded a file in Github, taken from Descartes' Discourse on Method, from the appendix, where, after establishing axioms and postulates, he deduces one truth from another and finally reaches a conclusion. This exact way of ordering the arguments is to be done. What I mean is simply this — the postulates and axioms would obviously be

the cpc related data. Obviously you cannot write it in the exact format of Descartes, since this is a moot problem. However, when you are going to write the arguments, for each issue, you are going to order them in the order of Descartes's reasoning example, such that when the reader reads it, he knows the rules, and then he follows the chain of reasoning that is enumerated in whole, such that the reader (here the reader means Professor) is able to grasp it, and understand it in entirety. Now, I do not want you to write it in such a manner whereby you state all the relevant laws first, and then you put down your reasoning. No. That might now be able all the time. But what you are going to do is to an extent going to look like this, — you understand the issue. You then put the object down first. What is it you are going to conclude. Then, you put down the law most immediate to the first deduction, then onwards. Then you put judgement, to support your deduction (your argument or your line of argument). Then again, for another truth, and then on and on for every issue there is. Descartes's example places all the "laws" at the beginning. Obviously, that cannot happen here, that is why, I gave you a slight example on how to do it.

B) More suggestions —

- i) Furthermore, it is going to follow, what in formal terms is known as the CREAC method. Conclusion, Rule, Explanation, Application, Conclusion. However, such formal method is not only complicated, but sometimes serves as *petitio principii*, therefore, you are going to follow the order as I stated, such that the entire chain of reasoning is visible, apparent, and "extremely simple".
- ii) The entire reasoning chain to be used, must be simple. What I mean by this is — since the subject that's strategy is being adopted, obviously it is going to include whatever is necessary to adopt such, however, not contradicting such, the arguments are going to be written as if only a person who has UNDERSTOOD the law and its application is writing it. Not a person who KNOWS the law, rather someone who UNDERSTANDS the law and how it is to be applied. You need not be twisting facts. You need not be lying. You must offer clarity absolutely and clearly, in favour of the plaintiffs. This is not to mean that you make arguments that defeat your position. No. This is simply to tell you how to make arguments and how to put them down.
- iii) There must not be any arguments written in a way that looks as if a Senior Advocate has written them. They must be written down in such manner, that it is apparent that a LOGICIAN has written them.
- iv) The arguments should be brief, and that is why I said that the entire track of reasoning should be visible, because since they would have to be kept brief, if you are clear, then the reader would fail to understand it. Brevity is not to mean making leaps in arguments, please don't do that. Above enumerations are sufficient to let you know what to do and what does not align with such.
- v) To structurise it formally, I can give you Vis memorandums, however, that would defeat the purpose of being simple and following the logician's approach. But to be very honest, the Vis memorandums do not come close to what I suggest here. My suggested method involves far more order and neatness and clarity, and a intuitive understanding that the reader is able to obtain on account of the order of the arguments and the language used. However, so that you know how a paragraph might look like, that is not

following the above mentioned approach, but you MUST integrate the above mentioned approach in a paragraph which resembles that of the Vis memorandums (which would be available only, go only for the top universities like fribourg, vienna, bonn, harvard's) with the judgements in line, like that. But again, the method I propose will not read like such paragraphs, but it is going to be much more orderly, and intuitive to understand, since the entire reasoning path is visible. You must keep it short and clear as well, anyways, being orderly would make it shorter.

- vi) You must understand that the “How to interpret” section above would be crucial for you to know how to interpret in a lawyer like manner. But again do not forget that that’s not my aim. The interpretation thing has to be adopted because the problem is not just favouring one side, therefore the interpretations has to dive in such depth and subtlety that even Professor herself wonders as to how come a student dove this deep in my problem. Additionally, the interpretation section has been my own personal experiences, recorded in a very brief manner, not exhaustive at all. Therefore, if you can dive into the prop in such a manner that you not only conduct deductive reasoning, but also Abductive reasoning, it would be closer to the attainment of the project’s object. Lastly, remember, LATERAL THINKING would help you with the interpretations. Think laterally, make “not thought of” arguments, since that is also what professor looks for.
- vii) I, as a counsel, will only get 3 minutes per issue in the oral hearings on 12th October. While obviously you are not to keep the document soo short that it’s over in 2 pages, but do not, make it more than 5 pages of content. I will add 2 to 3 pages of myself for the A.I. trail and the Note to reader that I will create but that’s up to me. You must keep in mind that I will use spaces freely since I will keep the arguments and document, in the most impeccable order.
- viii) Remember to not put headings or sub headings. In moot memorandums, there are not headings or sub headings, but the Order of the arguments should make it apparent. That is why I am saying, in accordance with below “How to use language” section, that it needs to be clean and extremely order, such that only reading the arguments make it clear to professor that there can be no better work done.
- ix) You must make clear, after putting down the issue, as to what order you are going to adopt in the following arguments. Don’t put headings or sub headings, simply dedicate a paragraph that flows and enumerates what you are going to do.
- x) Be sure to put Prayers section at the very end.

How to use language —

A) Suggestions —

- i) The language and wording to be used, would look nothing like what the Indian courts use, with their arrogant and superior nature of falsity and confusedness and complexity. No. I am no lawyer. I am a logician here, and the words which I will use will reflect those writings of Edgar Allan Poe and Descartes, which not only make clear the author’s intention, but reads like a breeze. The object is ABSOLUTE CLARITY.
- ii) I have no intention not obligation to write like a lawyer. No. It must not look like a person who is superior in the knowledge of legality has written it, but should look like a person, who knows Professor’s class with such thoroughness, that the

clarity is reflected, as if Professor herself has written them, obviously with much more emphasis on above enumerated i).

- iii) The “How to interpret” would help you understand how to twist arguments and words. Although this enumeration may go in the “How to write arguments”, I am writing here since all data here is to be read not in isolation but together.
- iv) The font and everything to be used, I will handle. You must give the content keeping in mind that I am going to be pasting such in Word, and formatting it myself. Also keep in mind that I will use the simplest formatting possible, with Bookman old style font or GARAMOND, and I will keep the formatting extremely neat and clean such that it runs only a few pages. If ma’am has not already made clear as to the number of pages, let me tell you that it should not run more than what is required as per above vii) “How to write arguments”. No em dashes, except for those that are so much required that without them the argument would fail. Nothing that shows that it has been written by A.I.